

Members' Bill of Rights

Rights of every Member, on and off the Reserves, and how they are enforced

Draft for approval by the Electors | September 30, 2026

Status	Draft for approval by the Electors in a Fundamental Vote.
Works with	Governance Constitution (Document 03). Rights are enforced through the Appeals and Complaints Code (Document 16).
Comes into force	On the day after the Electoral Officer certifies its approval under section 9.2.
Legal review	To be reviewed by legal counsel before the vote.

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MEMBERS' BILL OF RIGHTS OF THE FORT McMURRAY No. 468 FIRST NATION

WHEREAS the Members of the Fort McMurray No. 468 First Nation, wherever they live, share in the rights and the property of the First Nation; and

WHEREAS the Governance Constitution provides that every Member is equal before and under the laws of the First Nation; and

WHEREAS the Electors wish to state the rights of Members in one document and to provide a means of enforcing them;

NOW THEREFORE the Electors of the Fort McMurray No. 468 First Nation adopt this Bill of Rights:

Part 1 Interpretation and Application

1 Citation and Application

- 1.1 This Document may be cited as the *Members' Bill of Rights of the Fort McMurray No. 468 First Nation*.
- 1.2 Terms defined in the Governance Constitution have the same meaning in this Bill of Rights.
- 1.3 This Bill of Rights binds Council, every member of Council, every employee and contractor of the First Nation when acting for it, every body established by a Document, and every First Nation Business Entity when it delivers a program or benefit to Members.
- 1.4 This Bill of Rights applies to every Member, whether the Member lives on or off the Reserves.
- 1.5 Nothing in this Bill of Rights limits any right a Member has under the *Canadian Charter of Rights and Freedoms*, the *Canadian Human Rights Act*, Treaty No. 8, or any other law.

Part 2 Rights of Members

2 Democratic Rights

- 2.1 Every Elector has the right to vote in every Election and every vote of the Electors, whether the Elector lives on or off the Reserves, and to receive a mail-in ballot on request.
- 2.2 Every Elector who meets the qualifications in the Election Regulations has the right to be a candidate for office.
- 2.3 Every Elector has the right to sign a petition under the Community Votes and Petitions Code or the Election Regulations, and to have it verified by the Electoral Officer and not by Council.
- 2.4 Every Member has the right to attend and speak at Annual General Assemblies, Information Meetings, and Special Meetings, and to observe open meetings of Council, in person or by electronic means where provided.
- 2.5 A Member may speak at a meeting of Members in an Indigenous language used by Members. On written request of at least ten (10) Members, a summary of any Document shall be made available in that language within ninety (90) days.

3 Information Rights

- 3.1 Every Member has the right to request records of the First Nation and to receive a written decision within the time set by the Access to Information and Privacy Code.
- 3.2 Every Member has the right to receive the budget, the quarterly financial reports, the audited consolidated financial statements, and the schedule of remuneration and expenses of the Chief and Councillors, within the times set by the Financial Administration Code and sections 7 and 8 of the *First Nations Financial Transparency Act*.
- 3.3 Every Member has the right to read the minutes of Council meetings and every Band Council Resolution, as provided in the Council Procedure By-law.
- 3.4 Every Member has the right to see the personal information the First Nation holds about the Member and to ask that it be corrected, as provided in the Access to Information and Privacy Code.

4 Fair Treatment

- 4.1 Every Member has the right to have an application for housing, education support, a loan, business support, membership, or any other program or benefit decided:
 - (a) under written rules that are published before the decision is made;
 - (b) by the person or body the applicable Document names, and not by any member of Council acting alone;
 - (c) in writing, with reasons and the section relied on, within the time the applicable Document sets; and
 - (d) with a right of appeal to the body the applicable Document names.
- 4.2 No Member shall be refused a program, a benefit, an interview for a posted job, or a place on a list because the Member made a complaint, signed a petition, voted or campaigned for or against any person, made a report under the Whistleblower Protection Code, or lives off the Reserves, unless a statute requires residence for that program and the decision quotes that statute.
- 4.3 A decision made for a reason prohibited by section 4.2 is void, and the Appeals Panel shall order the matter decided again by persons who did not make the original decision.
- 4.4 No Member shall be required to give a favour, a vote, or a payment to any person in exchange for a program, benefit, job, house, or contract.

5 Freedom from Reprisal

- 5.1 Every Member has the right to make a complaint, request records, attend meetings, speak, sign petitions, report wrongdoing, and give evidence to any body established by a Document, without reprisal.
- 5.2 The Whistleblower Protection Code sets out how reprisal is investigated and remedied.

6 Privacy

- 6.1 Every Member has the right to have personal information about the Member collected, used, and disclosed only as the Access to Information and Privacy Code permits.

7 Limits on Rights

- 7.1 The rights in this Bill of Rights do not include a right to another person's personal information, a right to a house when none is available, or a right to a payment that is not provided for in an approved budget or program.
- 7.2 A right in this Bill of Rights may be limited only by a written provision of a Document that names the right being limited and sets out the extent of the limit. An oral or unpublished limit has no effect.

Part 3

Enforcement

8 Complaints

- 8.1 A Member who believes a right in this Bill of Rights has been breached may file a written complaint with the Appeals Panel within sixty (60) days after learning of the breach, and not later than one (1) year after it occurred.
- 8.2 The complaint shall state what happened, the date, the person or body responsible, the section of this Bill of Rights in issue, and the remedy requested.
- 8.3 The Appeals Panel shall decide the complaint in writing within thirty (30) days after the response period set by the Appeals and Complaints Code ends, and may order any remedy that Code permits.
- 8.4 Nothing in this Bill of Rights removes a Member's right to apply to a court.
- 8.5 A complaint shall state facts. A public statement that accuses a named person of a crime or dishonesty may expose the person making it to a claim for defamation. The Appeals Panel publishes outcomes, not allegations.

Part 4

Amendment, Review, and Coming into Force

9 Amendment and Coming into Force

- 9.1 This Bill of Rights may be amended only by Fundamental Vote, on a proposal made by Resolution of Council or by petition of at least ten percent (10%) of the Electors. A Resolution that purports to amend it is void.
- 9.2 This Bill of Rights is adopted by Fundamental Vote conducted by an independent electoral officer after at least forty-five (45) days' published and mailed notice with the full text attached, and comes into force on the day after the electoral officer certifies its approval.
- 9.3 This Bill of Rights is reviewed with the Governance Constitution under section 16 of the Constitution.
- 9.4 Until the Appeals Panel is established, a complaint under section 8 shall be heard by a retired judge or lawyer who is not a Member, selected by Council by Resolution.

Certificate of approval

Date of the vote

Electors on the List of Electors / ballots
cast / votes in favour

Signature of the electoral officer

Explanatory Notes

1. Purpose

This Bill of Rights states the rights of Members in one place and provides a complaint process before the Appeals Panel. These notes are not part of the Bill of Rights.

2. Key provisions

- Voting and candidacy rights for every Elector, on or off the Reserves, with mail-in ballots on request (section 2).
- Rights to records, financial reports, minutes, and Band Council Resolutions (section 3).
- Written rules, written decisions with reasons, and an appeal for every program and benefit (section 4.1).
- Decisions made because a Member complained, campaigned, reported wrongdoing, or lives off the Reserves are void (sections 4.2, 4.3).
- Protection from reprisal and privacy of personal information (sections 5, 6).
- Complaints to the Appeals Panel, with the right to go to court preserved (section 8).

3. Legal sources

Source	Provision
Canadian Charter of Rights and Freedoms, s. 15	Equality rights
Canadian Human Rights Act	Applies to First Nation governments following the repeal of section 67 of that Act
First Nations Financial Transparency Act, ss. 7, 8	Members' right to copies of audited statements and the schedule of remuneration and expenses
Indian Act, s. 86(2)	Right of any person to a copy of a by-law